

9:00 AM

Line 4

25-CIV-04482 CARLOS TAPIA, ET AL VS. CHRISTINA CORPUS, INDIVIDUALLY AND
IIN HER OFFICIAL CAPACITY, ET AL

CARLOS TAPIA
CHRISTINA CORPUS, INDIVIDUALLY AND IN HER
OFFICIAL CAPACITY

GRANT A WINTER
WAI SHUN WILSON LEUNG

Defendant/Cross-Complainant Daniel Perea's Demurrer to Complaint for: (1) 4th Amendment Unreasonable Arrest; (2) Free-Speech Violations; (3) Free Association Violations; (4) Interference with Union Activities; (5) False Imprisonment

TENTATIVE RULING:

For the reasons stated below, Defendant Daniel Perea's demurrer, filed Jan. 28, 2026, which is directed to Plaintiffs Tapia et. al.'s original Complaint, filed June 13, 2025, is HEREBY TAKEN OFF CALENDAR AS MOOT. The Court finds that on Aug. 3, 2026, Plaintiffs timely attempted to file a First Amended Complaint ("FAC") against Defendant Daniel Perea, which should have been accepted for filing, and which would have rendered this demurrer moot.

Background.

On June 13, 2025, Plaintiffs filed their original Complaint. On Jan. 28, 2026, Defendant Daniel Perea filed a demurrer to the Complaint. The hearing date for the demurrer was set for Aug. 21, 2026. On May 22, 2026, defendant Corpus filed an Answer to the Complaint. On Aug. 3, 2026, Plaintiffs attempted to file their proposed FAC, but the Clerk's Office rejected the attempted filing of the FAC, on grounds that defendant Corpus had already filed an Answer. (See Aug. 10, 2026 Decl. of Jason Hauer, ¶¶ 3-5; Exhibits 2-3.) The deadline for Plaintiffs to file their Opposition to the demurrer was Aug. 10, 2026.

Application/ruling.

With respect to Defendant Daniel Perea, Plaintiffs' Aug. 3, 2026 attempted filing of their FAC was timely under Code Civ. Proc. § 472(a). The fact that defendant Corpus had already filed an Answer did not terminate Plaintiff's right to amend with respect to the claims asserted against the County of San Mateo and Fox. (*Barton v. Khan* (2007) 157 Cal.App.4th 1216, 1220-21.) Therefore, the Clerk's Office should have filed the FAC, which would have rendered this demurrer moot. Because Plaintiffs timely exercised their right to amend as against Perea, and because the Clerk's rejection of the FAC was based upon the erroneous conclusion that defendant Corpus' Answer terminated that right, the Court declines to determine the merits of Perea's demurrer to the original Complaint.

Within five days of this Order, Plaintiffs shall file their proposed FAC with the Court, as a stand-alone document, and serve it on all parties. Defendant Daniel Perea shall then respond to the FAC, which will be Plaintiffs' operative pleading.

The proposed amendments concerning defendant Corpus are not decided by this Order.

The Court recognizes that Plaintiffs' proposed FAC also purports to assert amended claims against defendant Corpus, without leave of court. This Order is limited to Plaintiffs' right to amend *as against Defendant Daniel Perea*, pursuant to Code Civ. Proc. § 472(a).

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

25-CIV-08159 TRACY STETZ BILLUPS VS. COUPA SOFTWARE INCORPORATED, A
DELAWARE CORPORATION

TRACY STETZ BILLUPS
COUPA SOFTWARE INCORPORATED, A DELAWARE
CORPORATION

JOHN E LATTIN
ANTHONY S. ORTIZ

Defendant's Demurrer to Plaintiff's Complaint for Damages

TENTATIVE RULING:

For clarification the Court notes Defendant Coupa Software Incorporated has provided the improper address for the hearing because Department 20 is no longer located in San Mateo as the notice states, but instead at the Northern Branch Courthouse, 1050 Mission Road, Courtroom L, South San Francisco, CA 94080. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Defendant Coupa Software Incorporated's demurrer to the second, third, fourth, fifth, sixth and ninth causes of action in the complaint filed by Plaintiff Tracy Stetz Billups October 13, 2025 is SUSTAINED.

Defendant's concurrently filed motion to strike is DENIED as MOOT.

Defendant's late-filed reply brief due to counsel's calendaring error (Declaration of Anthony S. Ortiz iso reply, ¶¶3-5) was considered. Defense counsel is reminded of the Court's preference regarding reply brief courtesy copies, as noted on the Court's website. "Please anticipate a one week delay from eFiling of reply briefs to when they are accessible by the judge. To ensure the earliest review of any reply briefs please submit a courtesy copy to LawAndMotionReplyBriefs@sanmateocourt.org. Please make sure to enter the DEPARTMENT NUMBER and the CASE NUMBER on the subject line of your email."

Background

Plaintiff is a former employee of defendant. The Complaint raises 17 causes of action and avers that prior to her alleged pretextual termination she was subjected by her supervisors, managers, and other agents of defendants to sexual harassment, discrimination on the bases of sex/gender, age, religion, and marital status, and severe and intentional emotional distress. When plaintiff reported the harassment and discrimination, defendants failed to take action to end the harassment and discrimination and instead allegedly retaliated against plaintiff for lodging her complaints about unlawful conduct by terminating her employment.
